Annotated submission: the flow of legal reasoning

Left column: the submission, sentence by sentence, exactly as submitted (footnote numbers as superscripts). Middle: the reasoning step that sentence performs. Right: why it follows, with the authority and where to check it (casebook file and printed page). Read top to bottom: each paragraph moves issue, rule, the other side, application, conclusion; open branches are flagged and shown being closed.

I. ROCKY v GRACE

The primary issue between Rocky and Grace is whether their February dealings formed a binding loan, since, if they did, Grace could claim that Rocky failed to lend 'by 15 February'.	**ISSUE**	Frames Part I from Rocky's side: the only way Grace could sue him is if the February dealings formed a contract, so formation is tested first.
By asking Rocky on 5 February to offer a two-year loan, Grace invited an offer rather than making one[1], and Rocky declined, so no contract formed.	**FACTS + RULE + CONCLUSION**	5 February: Grace asked Rocky to make an offer. A request for an offer is an invitation to treat (Gibson). Rocky said he was 'not interested', so nothing could be accepted. Clears the first communication as negotiation only. **fn 1**: *Gibson v Manchester City Council* [1979] 1 WLR 294, 298 (Lord Diplock) ('*Gibson*'). Check: W1 C1A Offer/Casebook (casebook/reading p 42, pdf p 4)
Rocky could argue his 12 February email was merely a negotiating step, as it opens 'Confirming discussions' and its other points promise nothing.	**ROCKY'S ARGUMENT**	Rocky's best reading of the email: a record of negotiations, not an offer. Supported by its opening words and the two non-promissory bullet points.
However, 'I will lend' fixes the amount, date, term and rate, and 'Please confirm agreement' invites acceptance; unlike 'may be prepared to sell' in *Gibson*, these words are promissory[2], so the first point is likely an offer, though made 'subject to satisfactory conditions'.	**OTHER SIDE + RULE + CONCLUSION (hedged)**	Against Rocky: 'I will lend' is promissory and complete on amount, date, term and rate, and the email invites acceptance. Gibson is distinguished: 'may be prepared to sell' was not promissory. Likely an offer, but the qualifier is flagged for the next step. **fn 2**: Ibid. Check: W1 C1A Offer/Casebook (casebook/reading p 42, pdf p 4)

Acceptance requires 'an external manifestation of assent to an offer'[3].	**RULE**	Acceptance test (Empirnall): an external manifestation of assent. **fn 3**: *Empirnall Holdings Pty Ltd v Machon Paull Partners Pty Ltd* (1988) 14 NSWLR 523, 534 (McHugh JA) ('*Empirnall*'). Check: W1 C1B Acceptance/Casebook (casebook/reading p 71, pdf p 6)
Rocky could argue that 'Confirmed' only confirmed the email's accuracy, but it answered a request to 'confirm agreement' and added no new terms, so it likely accepted the first point, qualifier included.	**ROCKY'S ARGUMENT + APPLICATION + CONCLUSION**	Rocky's reading of 'Confirmed' (confirming accuracy only) is put, then answered: it replied to 'confirm agreement' and added nothing, so it is not a counter-offer. Likely acceptance.
Consideration would also exist, Rocky's promise to lend being exchanged for Grace's implied promise to repay with interest[4].	**CONSIDERATION**	Completes formation: a promise to lend for a promise to repay is an exchange of promises (Brambles quoting Integrated). **fn 4**: *Brambles Holdings Ltd v Bathurst City Council* (2001) 53 NSWLR 153, 177 (Heydon JA) ('*Brambles*'), quoting *Integrated Computer Services Pty Ltd v Digital Equipment Corp (Aust) Pty Ltd* (1988) 5 BPR 11,110, 11,117–18 (McHugh JA). Check: W1 C1B Acceptance/Casebook (casebook/reading p 78, pdf p 11)

The qualifier, however, raises whether the parties intended immediate obligations, which is assessed objectively, with the onus on Grace as the party alleging the contract, although their commercial status as 'project developers' supports it[5].	**ISSUE + RULE**	Turns to the qualifier: intention to be bound now. Objective test; onus on the party alleging the contract (Ermogenous [26]); the parties' commercial status points toward intention (Ermogenous [25]). **fn 5**: *Ermogenous v Greek Orthodox Community of SA Inc* (2002) 209 CLR 95, [25]–[26] (Gaudron, McHugh, Hayne and Callinan JJ) ('*Ermogenous*'). Check: W3 C3A Intention/Casebook (casebook/reading p 137, pdf p 3)
The question is whether the terms were settled and merely to be 'put into form', or were 'subject to a new agreement'[6].	**RULE**	Masters v Cameron test: settled terms merely to be 'put into form', or terms 'subject to a new agreement'. This is the line between a contract and a step in negotiation. **fn 6**: *Masters v Cameron* (1954) 91 CLR 353, 363, quoting *Winn v Bull* (1877) 7 Ch D 29, 32 (Jessel MR). Check: W3 C3A Intention/Casebook (casebook/reading p 156, pdf p 22)
Grace may rely on *Godecke*, where an agreement letting the vendor's solicitors add terms bound because those terms had to be reasonable 'in an objective sense'[7].	**OTHER SIDE (best authority)**	Grace's best case: Godecke, where terms left to the vendor's solicitors still bound because they had to be objectively reasonable. **fn 7**: *Godecke v Kirwan* (1973) 129 CLR 629, 642–3 (Walsh J) ('*Godecke*'). Check: W3 C3B Certainty/Casebook (casebook/reading p 189, pdf p 25)
	APPLICATION	

Rocky's qualifier contains no such standard: 'satisfactory' leaves the judgment to the party the condition protects[8], here Rocky, and the 'conditions', naming no external event, are most naturally further terms of the loan itself.	**(distinguishing)**	Godecke distinguished: Rocky's qualifier has no objective standard; 'satisfactory' leaves the judgment to the protected party (Meehan, Gibbs CJ), and the 'conditions' are unstated loan terms, not an external event. **fn 8**: *Meehan v Jones* (1982) 149 CLR 571, 580–1 (Gibbs CJ) ('*Meehan*'). Check: W3 C3B Certainty/Casebook (casebook/reading p 183, pdf p 19)
Gibbs J doubted that an agreement leaving 'further terms to be settled by one of the parties' binds[9], so on balance the loan was likely left to a new agreement, negating intention to be bound immediately.	**RULE + CONCLUSION (on balance)**	Gibbs J in Godecke doubted that leaving further terms to one party binds. On balance, the loan terms were left to a new agreement: no intention to be bound immediately. **fn 9**: *Godecke* (n 7) 646–7 (Gibbs J). Check: W3 C3B Certainty/Casebook (casebook/reading p 190, pdf p 26)

On certainty, Grace may argue that, as in *Meehan*, Rocky must decide honestly[10], which takes a promise outside the principle that a promisor with 'a discretion or option as to whether he will carry out' the promise makes no contract[11].	**OTHER SIDE + RULE**	Certainty: Grace's answer that Rocky must act honestly (Meehan, Gibbs CJ 581), which can save a promise from being illusory (Mason J quoting Thorby). **fn 10**: *Meehan* (n 8) 581 (Gibbs CJ). Check: W3 C3B Certainty/Casebook (casebook/reading p 183, pdf p 19) **fn 11**: Ibid 589–90 (Mason J), quoting *Thorby v Goldberg* (1964) 112 CLR 597, 605. Check: W3 C3B Certainty/Casebook (casebook/reading p 185, pdf p 21)
However, honesty in *Meehan* governed a judgment on an external condition, the availability of finance, whereas Rocky's discretion arguably concerns the content of his loan rather than relating 'only to the fulfilment of a condition'[12], and honesty cannot supply terms never agreed.	**APPLICATION (distinguishing)**	Meehan distinguished: honesty there governed an external condition (finance); Rocky's discretion goes to the loan's own content, and honesty cannot supply terms never agreed. **fn 12**: *Meehan* (n 8) 581 (Gibbs CJ). Check: W3 C3B Certainty/Casebook (casebook/reading p 183, pdf p 19)
Rocky's promise is therefore arguably illusory, and unless the conditions were settled 'this morning', the email likely bound neither party.	**CONCLUSION + BRANCH**	Promise arguably illusory; the email likely bound neither party. The open branch ('unless settled this morning') is carried forward and closed in sentence 17.

Rocky's 5 March demand for repayment under 'the Loan Agreement with AMPL' faces privity, under which 'only those who are parties to a contract can sue upon it'[13].	**ISSUE + RULE**	Rocky's 5 March demand under the Loan Agreement: privity rule stated in Windeyer J's words (Coulls 494). **fn 13**: *Coulls v Bagot's Executor & Trustee Co Ltd* (1967) 119 CLR 460, 494 (Windeyer J dissenting) ('*Coulls*'). Check: W4 C4A Privity/Casebook (casebook/reading p 333, pdf p 7)
Party status is determined from 'the written instrument itself'[14], and the Loan Agreement was made between AMPL and Grace, whose promises to repay were made to AMPL; none was made to Rocky, even as a joint promisee[15].	**APPLICATION**	Party status from the instrument (Coulls 487): the Loan Agreement is between AMPL and Grace; no promise to Rocky, so he is not a joint promisee either (Coulls 486). **fn 14**: Ibid 487 (Taylor and Owen JJ). Check: W4 C4A Privity/Casebook (casebook/reading p 331, pdf p 5) **fn 15**: Ibid 486 (Taylor and Owen JJ). Check: W4 C4A Privity/Casebook (casebook/reading p 330, pdf p 4)
Nor was AMPL his agent: though Rocky 'asked' it to lend, it lent in its own name and took his guarantee, so it contracted for itself[16], and its $1,150,000 advance neither performed his email nor made him a party.	**BRANCH CLOSED (agency)**	Closes the other route: AMPL lent in its own name and took Rocky's guarantee, so it was not his agent (Port Jackson 269, Lord Reid's conditions). This also answers the open branch: even if the email bound, AMPL's advance was not Rocky's performance. **fn 16**: *Port Jackson Stevedoring Pty Ltd v Salmond & Spraggon (Aust) Pty Ltd* (1978) 139 CLR 231, 269 (Mason and Jacobs JJ, quoting Lord Reid in *Scruttons Ltd v Midland Silicones Ltd* [1962] AC 446, 474), rev'd (1980) 144 CLR 300 ('*Port Jackson*'). Check: 96 Official judgments/Port Jackson Stevedoring v Salmond [1978] HCA 8.txt (next page marker after passage: p 269)
Grace's 'I never signed anything with you' is therefore right, but signature is not the test, as Mrs Coulls signed yet was not a party[17].	**OTHER SIDE ANSWERED**	Grace's own defence ('never signed') is right, but for the wrong test: signature does not decide party status (Mrs Coulls signed yet was not a party). **fn 17**: *Coulls* (n 13) 487 (Taylor and Owen JJ). Check: W4 C4A Privity/Casebook (casebook/reading p 331, pdf p 5)

Thus, beyond the Development Agreement, which pays only 'if the Project made a profit' and is not shown breached, Rocky has no contractual claim against Grace, whenever the 12 months began, and Grace likely has none against him for failing to lend; nor did Grace promise to reimburse Rocky for anything he pays AMPL.	**CONCLUSION (Part I)**	Rocky's claims against Grace: none, apart from the Development Agreement (which pays only on profit and is not shown breached). Grace likely has no claim against him. No promise by Grace to reimburse him.

II. ROCKY v AMPL (ALTERNATIVELY PIERRE)

On whether a contract for the $10,000 formed at the 8 April meeting, Pierre's statement that he 'expected' Rocky to ensure Grace's payments promised nothing, so it was likely an invitation to treat[18].	**ISSUE + FACTS + RULE**	Part II formation: Pierre's 'expected' promised nothing, so it was an invitation to treat (Gibson). **fn 18**: *Gibson* (n 1) 298 (Lord Diplock). Check: W1 C1A Offer/Casebook (casebook/reading p 42, pdf p 4)
Rocky's reply, 'I will do that if you also promise', offered a promise for a promise[19], which Pierre accepted when he 'agreed'[20].	**APPLICATION**	Rocky's conditional reply is the offer (a promise for a promise); Pierre's 'agreed' is acceptance. **fn 19**: *Brambles* (n 4) 177 (Heydon JA). Check: W1 C1B Acceptance/Casebook (casebook/reading p 78, pdf p 11) **fn 20**: *Empirnall* (n 3) 534 (McHugh JA). Check: W1 C1B Acceptance/Casebook (casebook/reading p 71, pdf p 6)
AMPL may argue that nothing bound until the Loan Agreement was signed, but parties are bound 'when, and in the manner in which, they intend'[21], and little suggests Rocky's undertaking was to await any signature, so a contract likely formed orally.	**OTHER SIDE ANSWERED + CONCLUSION**	AMPL's signing argument (Eccles via Brambles 176): bound when and how the parties intend. Little suggests the oral bargain awaited signature, so a contract likely formed orally. **fn 21**: *Brambles* (n 4) 176 (Heydon JA), quoting *Eccles v Bryant* [1948] Ch 93, 104 (Lord Greene MR). Check: W1 C1B Acceptance/Casebook (casebook/reading p 77, pdf p 10)

The same agency conditions guide whether Pierre, with AMPL's authority, contracted on its behalf rather than solely for himself[22].	**ISSUE + RULE**	Who promised: the same agency conditions decide whether Pierre contracted for AMPL or for himself. **fn 22**: *Port Jackson* (n 16) 269 (Mason and Jacobs JJ). Check: 96 Official judgments/Port Jackson Stevedoring v Salmond [1978] HCA 8.txt (next page marker after passage: p 269)
Rocky's 'you' points to Pierre, but Pierre controls AMPL and spoke at its office about its loan, so AMPL likely made the promise; if Pierre instead contracted for himself, Rocky's undertaking ran to Pierre, and AMPL can rely only on the guarantee clause.	**APPLICATION + CONCLUSION + BRANCH**	'You' points to Pierre, but he controls AMPL and spoke at its office about its loan: AMPL likely promised. Alternative branch kept: if Pierre promised personally, AMPL relies only on the clause.

On consideration, AMPL may invoke the existing legal duty rule, arguing that Rocky had already guaranteed the Loan, so his promise to ensure Grace's payments gave it nothing new[23].	**OTHER SIDE + RULE**	Existing legal duty rule (Sundell): if Rocky already owed the guarantee, his undertaking gave nothing new. **fn 23**: *TA Sundell & Sons Pty Ltd v Emm Yannoulatos (Overseas) Pty Ltd* (1955) 56 SR (NSW) 323, 327. Check: W2 C2A Consideration 1/Casebook (casebook/reading p 113, pdf p 15)
However, the rule presupposes a duty, as under 'a pre-existing contract' with the promisee[24], and none existed: on 27 February Rocky only 'asked' AMPL to advance the money, and 'Pierre agreed and the clause was included' suggests the clause followed the bargain.	**RULE + APPLICATION**	The rule presupposes a duty, as under a pre-existing contract with the promisee (Wigan 594). None existed: on 27 February Rocky only 'asked', and the narrative order suggests the clause followed the bargain. **fn 24**: *Wigan v Edwards* (1973) 47 ALJR 586, 594 (Mason J). Check: W2 C2B Consideration 2/Casebook (casebook/reading p 131, pdf p 14)
Even if the guarantee came first, ensuring that Grace made 'all payments' 'promptly' goes beyond guaranteeing 'repayment of the Loan', so Rocky likely provided consideration.	**EVEN IF + CONCLUSION**	Even if the guarantee came first, ensuring 'all payments' 'promptly' exceeds guaranteeing repayment, so consideration likely exists either way.

Intention is in issue because Pierre is Rocky's cousin, but presumptions about family arrangements at most identify who bears the onus[25], here Rocky.	**ISSUE + RULE**	Intention: the cousin relationship, answered by Ermogenous [26] (presumptions only identify the onus, here on Rocky). **fn 25**: *Ermogenous* (n 5) [26] (Gaudron, McHugh, Hayne and Callinan JJ). Check: W3 C3A Intention/Casebook (casebook/reading p 137, pdf p 3)
A promise to pay a fixed sum, made at AMPL's office as its loan was finalised, is 'appropriately promissory in character' and commercial[26], so intention is likely present whoever promised.	**APPLICATION + CONCLUSION**	A fixed-sum promise at AMPL's office while its loan was finalised is promissory and commercial (Banque Brussels 523): intention likely present whoever promised. **fn 26**: *Banque Brussels Lambert SA v Australian National Industries Ltd* (1989) 21 NSWLR 502, 523 (Rogers CJ). Check: W3 C3A Intention/Casebook (casebook/reading p 144, pdf p 10)

Rocky's undertaking to 'ensure' payment is not 'so obscure' as to be uncertain, because the Loan Agreement fixes the payments[27].	**CERTAINTY: RULE + APPLICATION**	'Ensure' is certain enough because the Loan Agreement fixes the payments (Upper Hunter 437). **fn 27**: *Council of the Upper Hunter County District v Australian Chilling and Freezing Co Ltd* (1968) 118 CLR 429, 437 (Barwick CJ) ('*Upper Hunter*'), quoting *G Scammell & Nephew Ltd v Ouston* [1941] AC 251, 268 (Lord Wright).

		Check: W3 C3B Certainty/Casebook (casebook/reading p 161, pdf p 3)
Read objectively, his unqualified 'I will do that', answering Pierre's expectation that he 'ensure' payment, likely promised that Grace would pay, not merely that Rocky would try[28].	**CONSTRUCTION + CONCLUSION**	Read objectively (Ermogenous [25]), 'I will do that' answering 'ensure' promised a result, not mere effort. **fn 28**: *Ermogenous* (n 5) [25] (Gaudron, McHugh, Hayne and Callinan JJ). Check: W3 C3A Intention/Casebook (casebook/reading p 137, pdf p 3)

A separate issue is whether the guarantee clause binds Rocky.	**ISSUE**	Separate issue: does the written guarantee clause bind Rocky, who did not sign it?
AMPL's call 'under the personal guarantee provided by Rocky' assumes, but does not prove, his assent, and because privity prevents AMPL and Grace's contract imposing obligations on Rocky[29], AMPL must show that assent.	**RULE + APPLICATION**	AMPL's call assumes his assent; privity's burden aspect (Trident, Deane J) means AMPL must prove it. **fn 29**: *Trident General Insurance Co Ltd v McNiece Bros Pty Ltd* (1988) 165 CLR 107 (Deane J). Check: W4 C4A Privity/Trident (course reading) (casebook/reading p n/a, pdf p 3)
Silence while a clause is included is generally not 'an external manifestation' of assent[30], but Rocky's 'I will do that', given for the $10,000 promise, likely binds him at least to his oral undertaking[31].	**RULE + APPLICATION**	Silence is not assent (Empirnall 534), but 'I will do that', given for the $10,000, binds him at least to his oral undertaking (Australian Woollen Mills: quid pro quo). **fn 30**: *Empirnall* (n 3) 534 (McHugh JA). Check: W1 C1B Acceptance/Casebook (casebook/reading p 71, pdf p 6) **fn 31**: *Australian Woollen Mills Pty Ltd v Commonwealth* (1954) 92 CLR 424, 456–7 ('*Australian Woollen Mills*'). Check: W2 C2A Consideration 1/Casebook (casebook/reading p 101, pdf p 3)
Having 'attended' with a reasonable opportunity to object, he arguably knew the clause's terms and assented to them by retaining the $10,000 promise[32], although Rocky could answer that the $10,000 priced his own words, not the clause.	**APPLICATION (hedged) + ROCKY'S ANSWER**	Arguably he assented to the clause by retaining the $10,000 promise with an opportunity to object (Empirnall 535 to 536); Rocky's answer that the $10,000 priced his own words is put. **fn 32**: *Empirnall* (n 3) 535–6 (McHugh JA). Check: W1 C1B Acceptance/Casebook (casebook/reading p 72, pdf p 7)

Consideration for the guarantee must move from AMPL[33], and if AMPL promised the $10,000, that promise supplies it.	**RULE + APPLICATION**	Consideration must move from AMPL as promisee (Coulls 495); if AMPL promised the $10,000, that supplies it. **fn 33**: *Coulls* (n 13) 495 (Windeyer J dissenting). Check: W4 C4A Privity/Casebook (casebook/reading p 333, pdf p 7)
If Pierre promised personally, AMPL's earlier advance is past consideration[34], which, though Rocky 'asked' for it, counts only if both understood it 'was to be remunerated'[35], and that is doubtful; AMPL's stronger answer is that it signed the Loan Agreement only after the clause was included, an act likely 'really done in consideration of' the guarantee[36], so the guarantee is likely supported if Rocky assented.	**BRANCH (Pierre) + RULE + APPLICATION + CONCLUSION**	If Pierre promised: AMPL's earlier advance is past consideration (Roscorla 237), saved only if both understood it was to be remunerated (Pao On 629 to 630), which is doubtful. AMPL's better answer: signing only after the clause was included (Australian Woollen Mills 456). Guarantee likely supported if Rocky assented. **fn 34**: *Roscorla v Thomas* (1842) 3 QB 234, 237; 114 ER 496 (Lord Denman CJ). Check: W2 C2A Consideration 1/Casebook (casebook/reading p 113, pdf p 15) **fn 35**: *Pao On v Lau Yiu Long* [1980] AC 614, 629–30 (Lord Scarman for the Board). Check: W2 C2A Consideration 1/Pao On extract (casebook/reading p n/a, pdf p 1) **fn 36**: *Australian Woollen Mills* (n 31) 456. Check: W2 C2A Consideration 1/Casebook (casebook/reading p 101, pdf p 3)

Whether AMPL's call was premature depends on when the 12 months began.	**ISSUE**	When did the 12 months begin? This decides whether the 9 March call was premature.
Post-contractual conduct cannot interpret the term[37], but because the term apparently specifies no start and is arguably ambiguous, mutually known facts showing 'the genesis of the transaction' are admissible[38].	**RULE**	Post-contractual conduct cannot interpret a term (Brambles 164); where a term is ambiguous, facts showing 'the genesis of the transaction' are admissible (Brambles 191, Ipp AJA). **fn 37**: *Brambles* (n 4) 164 (Heydon JA). Check: W1 C1B Acceptance/Casebook (casebook/reading p 73, pdf p 8) **fn 38**: Ibid 191 (Ipp AJA). Check: W1 C1B Acceptance/Casebook (casebook/reading p 82, pdf p 15)
AMPL may argue the term ran from its 27 February advance, since the agreement 'recorded' a loan already made.	**OTHER SIDE**	AMPL's reading: 'recorded' a loan already advanced on 27 February.
However, 'recorded' applies equally to the 4% rate, which nothing shows was agreed before 8 April, and the genesis shows only when the money moved, not that a term first agreed on 8 April began earlier.	**APPLICATION (answer)**	'Recorded' equally governs the 4% rate, first shown on 8 April; the genesis shows when money moved, not when a term agreed on 8 April began.
	CONCLUSION (hedged)	The term arguably ran from 8 April 2024, so the call was premature unless the

The term therefore arguably ran from 8 April 2024, making the 9 March 2025 call premature unless the Loan Agreement dates it from the advance.		Loan Agreement itself dates it from the advance.

The $10,000 is payable only 'once Grace repays the Loan', a condition precedent to the obligation rather than to the contract, which bound immediately[39], so nothing was payable on 9 March 2025, when Grace 'had not yet repaid'.	**RULE + APPLICATION**	'Once Grace repays the Loan' is a condition precedent to payment, not to the contract (Meehan 582): nothing was payable on 9 March 2025. **fn 39**: *Meehan* (n 8) 582 (Gibbs CJ). Check: W3 C3B Certainty/Casebook (casebook/reading p 184, pdf p 20)
Rocky could argue that, read commercially, his own repayment satisfies the condition[40]; however, the words refer to Grace, and the $10,000 priced his promise that Grace would pay, so his payment likely leaves the condition unfulfilled.	**ROCKY'S ARGUMENT + ANSWER + CONCLUSION**	Rocky's commercial reading (Upper Hunter 437) is put and answered: the words name Grace, and the $10,000 priced his promise that Grace would pay, so his own payment likely does not satisfy it. **fn 40**: *Upper Hunter* (n 27) 437 (Barwick CJ). Check: W3 C3B Certainty/Casebook (casebook/reading p 161, pdf p 3)

Accordingly, if Rocky assented to the clause, by which he 'personally guaranteed repayment of the Loan', he is liable for $1,150,000 once the Loan is due and unpaid: immediately if the term ran from 27 February, or from 8 April 2025 if Grace has still not repaid.	**EXPOSURE (guarantee branch)**	If he assented to the clause: liable for $1,150,000 once due and unpaid, now on the 27 February reading or from 8 April 2025 on the other.
If bound only by his oral undertaking, he likely breaches it, and faces damages, if Grace fails to pay any amount when due.	**EXPOSURE (undertaking branch)**	If bound only by his oral undertaking: a failure by Grace to pay when due likely breaches it, sounding in damages.
His $10,000 claim, against AMPL or alternatively Pierre, likely stands but is conditional[41]: it falls due only when Grace repays, so never if Grace, who said he 'might not pay at all', never repays, and likely never if Rocky pays it himself.	**EXPOSURE ($10,000)**	The $10,000 claim stands but is conditional: never due if Grace never repays (his 'might not pay at all'), and likely never if Rocky pays himself. **fn 41**: *Meehan* (n 8) 582 (Gibbs CJ). Check: W3 C3B Certainty/Casebook (casebook/reading p 184, pdf p 20)